

Contentious Chamber

Decision on the merits 73/2024 of May 13, 2024

File number: DOS-2019-02880

Subject: Complaint regarding the installation and use of surveillance cameras in the common areas of an apartment block

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter "GDPR");

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, hereinafter "the complainant";

Defendant 1:

Y1, hereinafter "Defendant 1";

Defendant 2:

Y2, hereinafter "Defendant 2", collectively referred to hereinafter as "the defendants".

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I. Facts and procedure

1.

The complaint concerns the installation and use of surveillance cameras in the common areas of an apartment block.

2.

On May 21, 2019, the complainant filed a complaint with the Data Protection Authority against Defendant 2.

The complainant is the owner of an apartment and a member of the homeowners' association. Cameras were installed by Defendant 1 in the common areas of the building that includes the apartment, without the complainant having given her individual consent for this purpose. Both Defendant 1 (installer) and Defendant 2 (property manager) would have access to the images. These images are stored in an unknown location and for an unknown duration.

3.

On June 12, 2019, the complaint was declared admissible by the Frontline Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber pursuant to Article 62, § 1 of the LCA.

4.

On June 26, 2019, the Contentious Chamber decided, under Article 95, § 1, 1° and Article 98 of the LCA, that the case could be processed on the merits.

5.

On June 28, 2019, the concerned parties were informed by registered mail of the provisions as set out in Article 95, § 2 and Article 98 of the LCA. They were also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

The deadline for receiving the defendants' response conclusions was set for July 29, 2019, the deadline for the complainant's reply conclusions for August 29, 2019, and the deadline for the defendants' reply conclusions for September 30, 2019.

6.

On July 17, 2019, the Contentious Chamber received the response conclusions from Defendant 1. Defendant 1 drew the Contentious Chamber's attention to the fact that certain documents listed in the inventory were not attached to the registered mail. She requested to receive these documents. Defendant 1 stated that the installation had been carried out on behalf of Defendant 2, who represented the homeowners' association. She did not consider herself responsible for the processing of the images from the cameras. She did not know if these cameras recorded, and there would be no maintenance or service contract. She also did not have an account to view the images.

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Defendant 1 also indicated that the complainant had damaged several signal cables, removed the surveillance stickers, and had threatened her. She sought compensation for the damages incurred.

7.

On July 22, 2019, Defendant 2 also drew the attention of the Disciplinary Chamber to the fact that certain documents were missing from the registered mail sent on June 28, 2019.

8.

On July 29, 2019, the Disciplinary Chamber was informed of the intervention of the complainant's representative. On August 22, 2019, the complainant brought to the attention of the Disciplinary Chamber that she had not received any submissions from Defendant 2 and that the allegations made by Defendant 1 were "completely irrelevant." [Note: the quoted passages from the file have been translated freely by the Translation Service of the Data Protection Authority, in the absence of an official translation]

9.

Following the absence of several documents in the file that was sent to the parties on June 28, 2019, the Disciplinary Chamber decided on September 18, 2019, to set new deadlines for submitting conclusions, so that the parties could rely on all the documents in the file.

10.

On September 19, 2019, the concerned parties were again informed by registered mail of the provisions as set out in Article 95, § 2 and Article 98 of the LCA. They were also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

The deadline for receiving the responses from the defendants was set for October 18, 2019, the deadline for the complainant's reply was set for November 4, 2019, and the deadline for the defendants' reply was set for November 18, 2019.

11.

On September 19, 2019, Defendant 1 responded that she did not understand the purpose of the letter received earlier that day, that the complainant no longer lived at the indicated address, and that she herself was only claiming compensation for "the costs incurred and the reckless and vexatious procedure against us."

On September 23, 2019, Defendant 1 also indicated that the address of her company was incorrect.

12. On October 17, 2019, the Disciplinary Chamber received the responses from Defendant 2 regarding the findings related to the subject of the complaint.

Defendant 2 stated that the complainant owned an apartment, a garage for her car, and a parking space in the building, but that she did not reside in the building.

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Following various incidents due to "reciprocal hostilities," several co-owners requested the installation of a security system with cameras in the entrance hall and in the garages.

The installation of cameras was submitted to the decision of the general assembly on January 22, 2018, which unanimously approved the installation, except for the abstention of a few owners, including the complainant. This approval was demonstrated by Defendant 2 through a copy of the minutes of that general assembly.

Defendant 2 clarified that such decisions were made within the homeowners' association by means of a vote and therefore not on an individual basis, which the complainant raised as a counter-argument. Furthermore, the complainant had a 4-month appeal period against a decision of the homeowners' association in case of disagreement with the decision. The complainant did not challenge the decision

for the installation of the cameras, after which, pursuant to Article 577-9, § 2 of the Civil Code, the decision would have become final and binding.

At the end of 2018, the cameras were installed and the sticker pictograms were placed. The complainant allegedly removed these stickers several times because they were bilingual, which she claimed was not allowed. Defendant 2 stated that the complainant also cut signal cables and threatened Defendant 1.

The cameras were not used continuously and had been out of service for several months. The images would be automatically deleted after 48 hours, and Defendant 2 had never consulted them. From this perspective, Defendant 2 was convinced that it was in compliance with the current legislation regarding cameras.

In July 2019, the complainant allegedly rendered one of the camera screens unusable with a permanent marker. This incident, added to the complaint, prompted Defendant 2 to deactivate the cameras. Since July 10, 2019, the cameras had not recorded any images.

To ensure complete compliance, Defendant 2 reported the cameras to the local police on October 16, 2019, although they had been out of service for several months. Defendant 2 demonstrated this with a copy of the report.

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Defendant 2 had placed the permanent removal or reactivation of the cameras on the agenda of the general assembly in January 2020.

13.

On November 1, 2019, the Disciplinary Chamber received the claimant's reply submissions.

The claimant noted that Defendant 2 had unequivocally acknowledged that the applicable legislation had been violated by the installation and use of the cameras, based on which the claimant requested that an administrative sanction be imposed on Defendant 2. The claimant interpreted this admission from Defendant 2 in the following paragraph:

"If the general assembly decides at that time to reactivate the cameras, [Defendant 2] must then ensure that this is done in full compliance with the applicable legislation in this matter."

Furthermore, the claimant contested the factual arguments of Defendant 2, which she deemed irrelevant.

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The claimant was not officially registered at the address in question, but she regularly stayed there and indeed resided at that address at the time of the installation of the cameras.

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Regarding the alleged hostilities between owners, the allegations only came from one co-owner, who had been labeled a fraud by Defendant 2. The claimant also asserted that this co-owner would have had access to the recorded images.

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Concerning the approval of the cameras at the general assembly on January 22, 2018, the claimant believed that the approval was merely a principle decision, as offers still needed to be requested and subsequently approved. These offers were never submitted to the residents.

At the general assembly on January 21, 2019, the claimant made a remark about this, which was demonstrated using a copy of the minutes of the relevant general assembly:

"[the claimant] states that for her, the installation of the camera is illegal, given the lack of basis, namely the individual consent of each owner. [the claimant] adds that only the installation of the cameras was decided at the previous general assembly and not the modalities.

[Defendant 2] adds to this that the decision to install cameras and their commissioning dates back to before the entry into force of the new GDPR legislation. [Defendant 2] will inquire about how to rectify this situation. [Defendant 2] will inform the internal DPO."

The claimant was reportedly not informed of the DPO's conclusions, and the residents were not informed of the commissioning of the cameras. The modalities of the installation were also not defined.

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The claimant asserts that a pictogram had not been placed near each camera and that these stickers were only removed once in the presence of Defendant 1, for non-compliance with the legislation.

The claimant also denied having damaged cables or threatened Defendant 1.

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The claimant also questioned the non-functioning of the cameras, given that the diodes on them were still operational and a monthly subscription was still being billed by Proximus.

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The claimant stated that the fact that Defendant 2 knew she had used a permanent marker to render a camera's screen unusable proved that the camera was still functioning and that the images were indeed being viewed.

Finally, the claimant also raised the question of who was actually responsible for processing for these cameras, which would also constitute a requirement of the law of March 21, 2007 regulating the installation and use of surveillance cameras¹ (hereinafter the cameras law).

14.

On November 15, 2019, the Disciplinary Chamber received the response submissions from Defendant 2.

Regarding the hostility between co-owners, three of them had reportedly already filed complaints with the police against the claimant. Defendant 2 demonstrated this with 3 police reports.

Regarding the offers for the decision to install the cameras at the general assembly on January 22, 2018, the fact that they were not yet available at that assembly would be irrelevant, as it only concerned the financial impact of the decision.

Regarding the removal of the sticker pictograms, Defendant 2 noted that the claimant had acknowledged doing so once. However, Defendant 2 claimed that the claimant had done it several times.

1 M.B., May 31, 2007.

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Defendant 2 attempted to prove the severing of cables, the removal of adhesive pictograms, and threats against Defendant 1 through the exchange of emails between Defendant 1 and Defendant 2. In these communications, Defendant 1 confirmed the facts as presented by Defendant 2.

Regarding a co-owner who allegedly had access to the images, Defendant 2 categorically stated that this was not the case.

Concerning the vandalism committed on a camera screen, Defendant 2 noted that the complainant had acknowledged it. Since July 10, 2019, the cameras had not recorded any images.

Finally, Defendant 2 requested that the occasional error and the absence of any intent regarding the acknowledged violation of the legislation concerning cameras be taken into account. Defendant 2 also requested consideration of the fact that "the individuals filmed by the cameras had all agreed to the cameras and their location [...]". To demonstrate this, Defendant 2 referred to the approval given for the installation of the cameras in the minutes of the general assembly on January 22, 2018.

15. On July 22, 2020, August 16, 2020, May 25, 2021, December 14, 2022, December 19, 2022, and February 6, 2024, the complainant inquired about the progress of the case and insisted that the complaint be processed quickly so that it could be closed.

II. Rationale

16.

First and foremost, the Disciplinary Chamber wishes to emphasize that this dispute dates back to 2019. Due to a lack of staff and changes in assignments within the Disciplinary Chamber, this case did not progress sufficiently after the submission of the defendants' replies, despite several reminders from the complainant. Given the substantive procedure, in which the parties had already exchanged submissions, and the - prima facie - complex nature of this case, it was decided not to include this complaint in the so-called Tabula Rasa exercise carried out by the Disciplinary Chamber in May 2023, during which a large number of cases were closed without further action in one go, in order to manage the backlog.

17.

Recent staff recruitments within the Disciplinary Chamber have allowed for the prioritization and careful handling of this case.

18.

Based on the elements of the case of which it is aware and the powers conferred upon it by the legislator under Article 100, § 1 of the LCA, the Disciplinary Chamber rules on the follow-up to be given to the case; in this instance, the Disciplinary Chamber proceeds with the dismissal of the complaint, in accordance with Article 100, § 1, 1° of the LCA, based on the following rationale.

19.

The Disciplinary Chamber finds in the submissions that the complaint it has been seized with is ancillary to a broader dispute that falls under the jurisdiction of other courts or tribunals, authorities, or administrative jurisdictions. In the submissions, the Disciplinary Chamber indeed reads a dispute concerning:

a. Neighborhood conflicts - Defendant 2 mentions "reciprocal hostilities," and the documents include 3 police reports in which 3 residents testify against the complainant. The complainant, on the other hand, claimed that only one other resident would be involved and that this individual had been labeled a fraud by Defendant 2.

b. Acts of vandalism - the defendants claim that the signal cables of the cameras were severed by the complainant, which she denies. The screen of a camera was also rendered unusable with a permanent marker, which the complainant does not contest.

c. Threats - the defendants claim that the complainant threatened Defendant 1, which the complainant denies.

d. A decision-making procedure within the general assembly of the homeowners' association - Defendant 2 claims that the decision to install the cameras was made in accordance with the legislation, even though the complainant voted against it. The complainant contests this and states that she never agreed to the installation of the cameras.

e. Compensation for damages suffered - Defendant 1 wishes to be compensated for the damages incurred, although she does not specify what these damages are.

f. Use of languages concerning the pictograms of the cameras - according to the defendants, these pictograms were removed several times due to their bilingual nature. The complainant confirms having removed the pictograms only once because they were not compliant with the legislation.

The Disciplinary Chamber believes that its intervention in this dispute is not strictly necessary and that most elements of the dispute are unknown to it and do not fall under its jurisdiction. Furthermore, an intervention by the Disciplinary Chamber in the specific circumstances of this case is not the most appropriate. Indeed, the

2 See criterion B.3 of the Disciplinary Chamber's policy on dismissals without further action.